

TERMS OF USE AGREEMENT

N00024-26-R-6311

Your company (hereinafter referred to as the “Recipient”) may receive access to interface control documents, technical data, Government Furnished Information (GFI), and/or other technical data (hereinafter referred to as “Data”) that shall only be used to generate and support questions, comments, and responses to the above referenced notice.

In consideration for receiving such Data, the Recipient agrees to use the Data strictly in accordance with this Agreement and to follow the specific Distribution Statements, markings, and guidance on each individual document.

DISCLOSURES AND RESTRICTIONS

General: The Recipient may receive access to Data whose export is restricted by the Arms Export Control Act (Title 22, U.S.C. § 2751 et seq.) or Executive Order 12470. Violations of these export laws are subject to severe criminal penalties.

Public release: The Recipient may receive access to Data which contains information EXEMPT FROM MANDATORY DISCLOSURE under the Freedom of Information Act. Additional guidance applies after Controlled Unclassified Information (CUI) controls have been removed. No publicity releases, World Wide Web sites, or public displays of any kind are authorized on this Data without the prior expressed written consent of COMNAVSEASYSKOM (00D) or higher DoD authority. The fact that certain details of information are shown to be unclassified information does not automatically indicate eligibility for public release. All requests for public release shall be processed through appropriate channels for publication approval.

Foreign Disclosure: The Recipient may not disclose any documents or Data marked as NOFORN to foreign nationals (regardless of clearance, export licenses, or international agreement) or transmit said enclosures outside the geographical bound or custom territory of the United States of America.

Subcontractor Disclosure: A Prime Contractor is responsible for any subcontractor disclosure considerations and must ensure that it adheres to the rules of the subject agreement. A Prime may allow subcontractors to view documents under Prime control in accordance with the DoD 5220.22-M, National Industrial Security Program Operating Manual (NISPOM).

Destruction Notice: For classified documents, follow the procedures in DoD 5220.00-M, National Industrial Security Program Operating Manual, Chapter 5, Section 7, or SECNAVINST 5510.36, Chapter 10. For CUI, destroy by any method that will prevent disclosure of contents or reconstruction of the document.

Classified Documents: Classified documents shall be marked with the appropriate level of classification designations, such as (C), (S), and (S/NF). Personnel accessing classified information in the performance of this contract need only possess a security clearance at the level of classification necessary to accomplish these tasks. The highest level of classification for this contract is SECRET.

Data Suitability: The Recipient agrees to accept this Data “as is” without any Government representation as to suitability for intended use or warranty whatsoever. This disclaimer does not affect any obligation the Government may have regarding Data specified in a contract for the performance of that contract.

Data Provided With Restricted Markings: Data provided to the Recipient may be subject to restrictions on use, modification, reproduction, release, performance, display, or further disclosure. The recipient shall follow the specific Distribution Statements, Markings, and guidance on each individual document. In consideration for receiving such Data, the Recipient agrees to use the Data strictly in accordance with Defense Federal Acquisition Regulation Supplement (DFARS) Clause 252.227-7025.

USE OF DATA

The Recipient must comply with 32 C.F.R. Part 117, National Industrial Security Program Operating Manual (NISPOM).

The Recipient must comply with the protection requirements in Defense Federal Acquisition Regulation Supplement (DFARS) Clause 252.204-7012, "Safeguarding Covered Defense Information and Cyber Incident Reporting" and National Institute of Standards and Technologies (NIST) Special Publication 800-171, "Protecting Controlled Unclassified Information in Nonfederal Systems and Organizations."

The Recipient may NOT:

- a. Duplicate, transmit, or post the Data in a manner contrary to the guidance provided herein or the restrictive markings contained on and within the specific documents;
- b. Disclose the Data to anyone without proper clearance; or
- c. Disclose the Data to foreign nationals (regardless of clearance, export licenses, or international agreement) or transmit said enclosures outside the geographical bound or custom territory of the United States of America.

Copy Log: In order to facilitate review, the Recipient is granted the authority to make copies of this Data. The Recipient shall maintain a copy log of all produced copies, including to whom and when the copies were distributed and date of destruction. The Recipient shall furnish these records upon demand of the Contracting/Agreements Officer or other authorized Government security official. The Recipient shall provide a copy of the log via email to the Contracting/Agreements Officer no later than seven (7) calendar days after destruction of the Data is completed as specified herein.

Destruction Log: The Recipient shall destroy the originals and all copies of documents no later than 30 calendar days after contract/agreement award, unless the Recipient is awarded the contract/agreement. The Recipient shall notify the Contracting/Agreements Officer via email of the destruction of all data. The Recipient shall maintain records of destruction available for inspection for a period of five (5) years. The Recipient shall provide a copy of the destruction log via email to the Contracting/Agreements Officer no later than seven (7) calendar days after destruction of the Data is completed as specified herein.

RECIPIENT IDENTIFICATION

Provide the following information for the Recipient:

Business Name: _____

UEI Number: _____

CAGE Code: _____

Business Address: _____

Mailing Address: _____

Level of Facility Clearance: _____

Level of Storage Capability: _____

Classified Mailing Address: _____

Classified Mailing POC: _____

Cognizant Security Officer (CSO): _____

ACKNOWLEDGEMENT AND ACCEPTANCE

As the Facility Security Officer of the above business, I hereby acknowledge and accept the terms of this agreement.

_____ Print Name	_____ Signature	_____ Date
_____ Telephone No.	_____ Email Address	

As the Authorized Representative of the above business, I hereby acknowledge and accept the terms of this agreement.

_____ Print Name*	_____ Signature*	_____ Date
_____ Telephone No.	_____ Email Address	

* Authorized to sign on behalf of the company